



File No.: EXP202212245

Resolution No.: R/00313/2023

Considering the complaint filed on October 11, 2022, with this Agency by Mr. A.A.A. (hereinafter, the complainant) against Mr. B.B.B. (**URL.1) (hereinafter, the respondent) for not having attended to his request to exercise the rights established in Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the following has been established:

FACTS

FIRST: The complainant, on September 28, 2022, requested the respondent to "(...) remove from its database any public appearance (through web, search engines, etc.) of any personal data, (...)".

On October 6, 2022, he received a negative response, based on the fact that the data came from a publicly accessible source, the BORME, urging the affected party to address the BOE and request, if desired, their inclusion in the robots.txt file, to prevent indexing by internet search engines of links to the website.

SECOND: The LOPDGDD in Article 65.4 has provided a mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection, which consists of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they can analyze said complaints and respond within one month.

The respondent has indicated that, once they received the complainant's request, they informed him that his request was not appropriate as it concerned data obtained from public sources such as the Official State Gazette (BORME). Notwithstanding the above, they offered him, through a communication sent by email on October 6, 2022, the possibility of de-indexing his name from search engines, to which the applicant responded in disagreement as seen in the communication provided by the complainant.

On October 13, they informed the applicant that the use of the data in LibreBOR is correct and again offered him the possibility of de-indexing from search engines the pages related to his data. "Mr. A.A.A. responded by attaching his ID and I personally processed his request the next day. In the following days, I conducted a quick check on Google where I could verify that the applicant's name was no longer indexed in the search engine and we considered the request finalized."

THIRD: Once the procedure provided for in Article 65.4 of the LOPDGDD was completed, the complaint was admitted for processing and the respondent was granted a hearing period, to present any allegations they deemed appropriate within ten working days.

The respondent has indicated that "(...) in the Admission Agreement, it is stated that the AEPD proceeds to admit the complaint based on the inaccuracy of the data, and however, the data is accurate.

The published data is obtained directly from the bulletins of the official registries. The State Agency of the Official State Gazette authorizes this dissemination.

In this regard, the complainant's search (A.A.A.) results chronologically in the following information: "Revocations: On date **DATE.1, the following revocations in the company are registered in the Mercantile Registry: ADM.UNICO: A.A.A..

Registry data: (...)". Information that is considered accurate as it appears compiled in the official bulletin of the mercantile registry of **LOCALITY.1 of the day (...).

We remind, for this purpose, that in accordance with Article 20 of the Royal Decree of August 22, 1885, by which the Commercial Code is published, the content of the Registry is presumed accurate and valid unless a judicial declaration of its inaccuracy or nullity is registered.

Such a judicial declaration of inaccuracy or nullity has not been communicated by the applicant at any time. (...)"

The respondent also states that "...). In this regard, the AEPD argues that the period for filing complaints against the administrators is four (4) years according to the LSC.

The revocation of the complainant's position as administrator was registered on the day (...) and published in the BORME on the day (...) (Annex I) and, however, while the complaint before the AEPD was made on the day (...), the deletion request was exercised on the day (...), that is, before the completion of the four years."

Regarding Article 5.1.d GDPR, "(...) it states in its literal sense that personal data must be "accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');

In this regard, as previously stated, the personal data contained in LIBREBOR is obtained directly from the publications of the official registries. (...) Information that is presumed accurate as it appears compiled in the official bulletin of the mercantile registry."

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Regarding Article 17 of the GDPR "Right to be Forgotten" "(...) the data whose deletion is requested:

(i) has been compiled by the Commercial Registries for the purposes of registration publicity, registration, and general administration in accordance with the Commercial Code of 1885 and with Royal Legislative Decree 1/2010, of July 2, which approves the consolidated text of the Capital Companies Act Royal Decree 1784/1996, of July 19, which approves the Regulation of the Commercial Registry and (ii) the Commercial Registry retains it for an indefinite period of time as stated in the activity register published by the Commercial Registry itself:

ba1349fb-33b4-34ae-f4f6-3f931a85138f (registradores.org).

Furthermore, the Court of Justice of the EU in judgment C-398/15 stated that the publicity of company registers aims to ensure legal certainty in the relationships between companies and third parties and to protect, in particular, the interests of third parties in relation to public limited companies and limited liability companies. Additionally, the Court of Justice notes that there may be situations where it is necessary to have access to personal data collected in the company register even many years after a company has been liquidated. The Court also stated that Member States cannot guarantee individuals whose data is registered in the company register the right to obtain, after a certain period from the liquidation of the company, the deletion of personal data concerning them. However, it is true that the Court of Justice also indicates that, in situations specific to the particular circumstances of the data subjects, it may be exceptionally justified to limit access to the personal data concerning them registered in the register after a sufficiently long period following the liquidation of the company.

In this particular case, as already stated in the third paragraph of this third allegation, Mr. A.A.A. filed the complaint with the AEPD on October 11, 2022, although he requested the deletion of his data from LibreBOR on September 28, 2022, and, however, the deadline for taking action against the administrator under Article 241 bis LSC had not yet elapsed." "(...) To conclude, by way of synthesis, it is requested that the AEPD take into consideration that, ultimately, the de-indexing and deletion of the data has been carried out once 4 years have passed since its revocation."

FOURTH: After examining the allegations, they were forwarded to the complainant for them to present any allegations they deemed appropriate, without any response having been received by this Agency.

FIFTH: The General Subdirectorate for Data Inspection has conducted a search for the name of the complainant on the website of the respondent and it is verified that the pages of the BORME are not accessible.

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LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the GDPR; and Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by data subjects and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Likewise, the internal legal framework, in Article 65.4 of the LOPDGDD, has provided for a mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection, which consists of forwarding them to the data protection officers designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not appointed one, so that they can analyze these complaints and respond within one month.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on December 30, 2022, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.”

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In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement for processing. Once this period has elapsed, the interested party may consider their claim accepted.

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be purified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication addressed to the interested party in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: Article 17 of the GDPR, which regulates the right to deletion of personal data, establishes the following:

“1. The interested party shall have the right to obtain from the data controller the deletion of personal data concerning them without undue delay, and the controller shall be obliged to delete the personal data without undue delay when one of the following circumstances applies:

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- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws the consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this is not based on another legal basis;
- c) the data subject objects to the processing under Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replication of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims.”

FIFTH: In the case analyzed here, from the examination of the documentation provided by the parties, it has been established that the claimant requested the erasure of their data from the respondent, and that, although the latter initially denied the right, based on the fact that the data are obtained directly

from the bulletins of the official registers, authorized by the State Agency of the Official State Bulletin, during the processing of this procedure it has complied with the exercise as the legally established period of 4 years of publication of the same for the liability action against the administrator according to Article 241 bis LSC has been fulfilled.

Consequently, it is appropriate to uphold the claim presented for formal reasons.

In view of the cited provisions and others of general application,

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the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD, for formal reasons, the claim made by Mr. A.A.A. against Mr. B.B.B., with NIF ***NIF.1. However, the issuance of a new certification is not appropriate as it has been established that the right has been addressed during the processing of this procedure.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process (Article 18.4 of the LOPD), and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, a voluntary appeal for reconsideration may be filed before the Director of the Spanish Agency for Data Protection, within one month from the day following the notification of this resolution, or directly an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

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